IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal against a Judgment of the Provincial High Court under and in terms of the provisions of the Constitution of Sri Lanka, High Court of the Provinces (Special Provisions) Act No. 19 of 1990, as amended by High Court of the Provinces (Special Provisions) Amendment Act No. 54 of 2006 and other related Laws.

CA Appeal No:

CA(PHC)0095/2019

H.C. Nuwaraeliya Application No:

H.C.A.07/2017/Revision

M.C. Hatton Case No:

3295/2016

Secretary,
Hatton-Dickoya Urban Council,
Hatton.

Petitioner

Vs

R. Krishnamoorthy,
Sri Krishna Bhawan Reception Hall
47/2, Dunbar Road, Hatton.

Respondents

AND

R. Krishnamoorthy,
Sri Krishna Bhawan Reception Hall
47/2, Dunbar Road, Hatton.

Respondents-Petitioner

Vs

Secretary,

Hatton-Dickoya Urban Council,

Hatton.

Petitioner-Respondent

AND NOW BETWEEN

R. Krishnamoorthy,

Sri Krishna Bhawan Reception Hall

47/2, Dunbar Road, Hatton.

Respondents-Petitioner-Appellant

Vs

Secretary,

Hatton-Dickoya Urban Council,

Hatton.

Petitioner-Respondent-Respondent

Before : **D. THOTAWATTA, J.**

K. M. S. DISSANAYAKE, J.

Counsel : K.V.S. Ganesharajan with M. Mangaleshwary Shanker and Vithusha Logananthan for the Respondent-Petitioner-Appellant.

Janajith De Silva for the Petitioner-Respondent-Respondent.

Argued on : 08.09.2025

Written Submissions

of the Respondent-

Petitioner-Appellant
tendered on : 01.09.2025

Written Submissions
of the Petitioner-Respondents
-Respondents
tendered on : 24.11.2025

Decided on : 20.03.2026

K. M. S. DISSANAYAKE, J.

The instant appeal arises from an order of the learned High Court Judge of the Central Province holden at Nuwaraeliya dated 14.06.2019 (hereinafter called and referred to as 'the Order') made in a revision application bearing No. H.C.A.07/2017/Revision wherein, the learned High Court Judge of the Central Province holden at Nuwaraeliya (hereinafter called and referred to as 'the learned High Court Judge of the Province') had dismissed the application in revision preferred thereto by the Respondent-Petitioner-Appellant (hereinafter called and referred to as 'the Appellant') against the order of the learned Magistrate of Hatton dated 10.03.2017, whereby, he had made order authorizing the Respondent to demolish the 4th and the 5th floors of a building as being an unauthorized construction erected by the Appellant in contravention of the building plan, approved by the Hatton Dickoya Urban Council and as morefully, described in the petition preferred thereto by the Petitioner under and in terms of section 28A(3) of the Urban Development Authority Act No. 41 of 1978 as amended (hereinafter called and referred to as 'the Act') seeking an order for demolition of the same. Being aggrieved by the order, the Appellant has now, preferred to this Court the instant appeal on the questions of law as morefully, set out in paragraph 20(i) to (xvi) of the petition of appeal among any other

substantial questions of law that may be urged by Counsel at the hearing of this appeal and they may be reproduced *verbatim* the same as follows;

> "i. Is it necessary for the UDA to intervene when the power to grant permission to construct buildings with ground and three other floors has been vested with the relevant local authority until 22.01.2017?;
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> ii. If so, is it legal for the Respondent file this application against the Appellant?;
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> iii. Is it legal for a local authority to present an Application under the UDA Act, when the respective Chairman and Secretary have been named by office for this specific purpose?;
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> iv. Are the provisions of Article 4(d) of the Constitution mandatory on the Local Government Authorities?;
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> v. Are the Hon. Magistrates and Hon. High Court Judges too mandated by the said Constitutional provision?;
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> vi. Thus, is it incumbent on the said Judges to safeguard, intervene and ensure the said provision?;
>
> vii. Is the discriminatory actions and behavior of the Respondent an instance where the said Judges should have intervened?;
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> viii. Is it just and fair for the High Court Judge to say, "...I see no illegality, impropriety or procedural irregularity in the order of the learned magistrate..." in the face of obvious discriminatory actions of the Respondent?;
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> ix. Is it just and fair for a local authority to prosecute only selected individuals when there are so many such culprits?;
>
> x. Is it just and fair for the UDA to authorize only selected individuals when there are so many similar culprits?

xi. Is it fair for the demolition of such a valuable building when it can be legalized by the payment of a fine?

xii. Is it only just and fair that, the local authority and/ or the UDA authorizes any unauthorized part considering the value of the same and the delay of two years to take action?

xiii. Is demolition of a building a just and fair order in the face of reasonable doubt with regard to the legality of the initial application, mitigatory circumstances and the availability of alternative options?

xiv. Is it just and fair to comment "If there were unauthorized construction as pointed out by the petitioner the court must appreciate the bravery of the respondent to initiate actions to remove those unauthorized constructions. This may well have been the first. In fact, the respondent must be commended for her pioneer work." when there is undeniable evidence to the contrary not denied by even the Respondent?

xv. Should not all the grounds raised in a Revision Application be duly considered in full before making Judgment?

xvi. Does the existence of exceptional circumstances call for an in-depth consideration of all related facts?".

It is in this context, let me now, briefly, set out the facts and circumstances that according to the Appellant, led to the institution of the instant appeal before this Court.

The Secretary of the Hatton-Dickoya Urban Council being the Petitioner thereto, who is the Respondent to the instant appeal, had on 08th September 2016, preferred an application under and in terms of section 28A(3) of the Act in the Magistrate's Court Hatton citing therein, the Appellant to the instant appeal as the Respondent thereto, seeking, *inter alia*, an order to demolish an unauthorized construction described in her application. It was stated by the Petitioner thereto, in her application that the Respondent thereto, had on 21st

May 2012, submitted an application to get a building plan approved by the Hatton-Dickoya Urban Council (**ඉජ1**) and it had been approved on 10th of October 2012 by it subject to certain amendments (**ඉජ2**). It was in her application, alleged by the Petitioner thereto, that the Respondent thereto, had however, constructed two stories, namely; 4th and 5th floors, in contravention of the approved building plan. It was in her application, further stated by the Petitioner thereto, that the Respondent thereto, had on several occasions, been warned by notices annexed to her application marked as '**ඉජ3**' to '**ඉජ11**', to demolish the unauthorized construction, namely; 4th and 5th floors, but it was not complied with by the Respondent thereto and as a result, a final notice dated 23.06.2016 a copy of which was annexed to her application marked as '**ඉජ12'** was issued to the Respondent thereto, thereby directing to demolish the said unauthorized construction, namely; 4th and 5th floors, and informing him that in the event of failing so to do, it would be demolished under section 28A(1) of the Act without any further notice and upon a failure on the part the Respondent thereto, to comply with the final notice sent to him by the Hatton-Dickoya Urban Council, the Secretary thereto, being the Petitioner had filed the application in the Magistrate's Court of Hatton in case bearing No. 3295/2016 under section 28A(3) of the Act praying *inter-alia*, for a demolition order of the unauthorized construction erected by the Respondent thereto, namely; 4th and 5th floors and the Respondent thereto, who had appeared before the Magistrate's Court of Hatton upon notice, raised in his statement of objections filed in the Magistrate's Court of Hatton along with the documents annexed thereto, marked as **එ1** to **එ104**, a number of preliminary objections with regard to the maintainability of the application preferred thereto by the Petitioner thereto. The learned Magistrate of Hatton had having rejected all the preliminary objections *in toto*, made order authorizing the Respondent to demolish the 4th and the 5th floors of the building as being an unauthorized construction erected by the Appellant in contravention of the building plan, approved by the Hatton Dickoya Urban Council and as morefully, described in the petition preferred thereto by the

Petitioner under and in terms of section 28A(3) of the Act. Being aggrieved by the order of the learned Magistrate of Hatton, the Appellant to the instant appeal had preferred an application in revision to the High Court of the Central Province holden at Nuwaraeliya seeking to revise and set aside the order of the learned Magistrate of Hatton and the learned High Court Judge of the Province had dismissed the application in revision on the premise, that there was no illegality, impropriety or procedural irregularity in it. Being aggrieved thereby, the Appellant had now, preferred the instant appeal to this Court seeking to set aside both of the orders made by the learned Magistrate of Hatton as well as the learned High Court Judge of the province on an array of questions of law enumerated above. However, it is to be observed that of questions of law, only a few of them as enumerated below had been argued by the learned Counsel for the Appellant before us at the hearing of the instant Appeal in support thereof, and thus, the rest of the questions of law so formulated by the Appellant in his petition of appeal had been abandoned.

It was the position adverted to in the petition filed before the Magistrate Court of Hatton, by the Respondent to the instant appeal who was the Petitioner in the proceedings before the Magistrate Court of Hatton that the building application submitted to the Hatton-Dickoya Urban Council (ඉඅ1) by the Appellant had been approved on **10.10.2012** by it subject to the amendments by the letter annexed to the petition filed in the Magistrate Court of Hatton marked as (ඉඅ2). Point to be emphasized here is that the position so adverted to, by the Respondent to the instant appeal who being the Petitioner in the proceedings before the Magistrate's Court of Hatton that the building application submitted to the Hatton-Dickoya Urban Council (ඉඅ1) by the Appellant had been approved on **10.10.2012** by it, had clearly, and unequivocally, been admitted and endorsed by the Appellant too, **particularly, in paragraph 23** of his statement of showing cause. Not only that but also it was further, conceded, admitted and endorsed by the Appellant in no uncertain terms in paragraphs 10, 24, 25, 26, 27(i), and 31(i), of his showing cause filed in the Magistrate Court of Hatton too.

However, the Appellant being Respondent to the proceedings before the Magistrate's Court of Hatton, had despite his clear, and unequivocal, admission so made by him in paragraph 23 of his statement of showing cause in particular, filed in the Magistrate Court of Hatton and also in paragraphs 10, 24, 25, 26, 27(i), and 31(i), thereof, that the building application submitted to the Hatton-Dickoya Urban Council (පැ1) by the Appellant had been approved on **10.10.2012** by it, nevertheless, made an entirely, futile attempt to take up a entirely, different position to that of the one taken up by him as aforesaid in that it was in his own statement of showing cause, contended by the Appellant who was the Respondent in the proceedings before the Magistrate's Court that the Hatton-Dickoya Urban Council had approved another plan on **01.04.2013**, which was the latest plan by which 4th and 5th floors of the building in question had been approved by the Hatton-Dickoya Urban Council which was vehemently, denied and disputed by the Respondent to the instant appeal who was the Petitioner to the proceedings in the Magistrate's Court of Hatton. A copy of the purported plan dated 01.04.2013 had been annexed to his statement of showing cause Respondent therein, being Appellant to the instant appeal marked as **වි1**.

Hence, it clearly, appears to me that the Appellant had endeavoured to take up two different and contradictory positions in his own statement of showing cause with regard to the date of the approved building plan so that he had been very much inconsistent in this regard which alone, entitled the learned Magistrate of Hatton to totally, reject the two different and contradictory positions so adverted to by the Respondent in the proceedings before the Magistrate's Court of Hatton who now being the Appellant in the instant appeal with regard to the approved building plan.

There is a further point which would in my opinion, certainly, militate against the position so adverted to by the Respondent in the proceedings before the Magistrate's Court of Hatton that the Hatton-Dickoya Urban Council had approved another plan on **01.04.2013**, which was the latest plan by which 4th

and 5th floors of the building in question had been approved by the Hatton-Dickoya Urban Council and it may now, be examined.

The Petitioner had annexed a number of documentary evidence marked as **ඉඑ3** to **ඉඑ12** to the application filed before the Magistrate Court of Hatton under and in terms of section 28A(3) of the Act in support thereof. However, it is to be observed that, although, the Respondent who is the Appellant to the instant appeal had in the statement of showing cause filed in the Magistrate's Court of Hatton, specifically, denied the averments of the petition of the Petitioner filed in the Magistrate's Court of Hatton in which the documents marked as **ඉඑ3** to **ඉඑ12** had been referred to, he had nevertheless, clearly, and unequivocally, admitted for the first time in the averments in paragraph 21 of his written submissions filed before this Court even after the argument of this appeal had been concluded, that he had received the Letters marked as **ඉඑ3** to **ඉඑ12** directing him to remove and demolish the 4th and 5th floors being the unauthorized construction erected by him on the building in total contravention of the building plan approved by the Hatton-Dickoya Urban Council on 10.10.2012 which unmistakably, shows that he had been made fully, aware by the Petitioner in the proceedings before the Magistrate's Court on behalf of the Hatton-Dickoya Urban Council that the approved building plan is the building plan approved by the Hatton-Dickoya Urban Council on 10.10.2012 (Vide-**ඉඑ1** and **ඉඑ2**) that the Respondent in the proceedings before the Magistrate's Court of Hatton who being Appellant to the instant appeal had erected the 4th and 5th floors on the building being an unauthorized construction in total contravention of the building plan approved by the Hatton-Dickoya Urban Council on 10.10.2012.

Upon the receipt of those letters (**ඉඑ3** to **ඉඑ12**), the Respondent ought to have promptly, questioned the right of the Hatton-Dickoya Urban Council to send him those letters, had the allegation contained in those letters (**ඉඑ3** to **ඉඑ12**) been untrue or without any legal basis in view of the position so adverted to by him was true, namely; that it was not **ඉඑ1** but **ඊ1** which was the latest plan by which

the 4th and 5th Floors of the building were approved by the Hatton-Dickoya Urban Council, for; this is how a man of ordinary prudence ought to have reacted promptly, upon receipt of letters of that nature had the contents thereof, been utter falsehoods or devoid of merit.

However, there had been not an iota of material produced before the Magistrate Court of Hatton by the Respondent in the proceedings before the Magistrate's Court of Hatton who being Appellant to the instant appeal, to show that he acted so after having received those letters (**පැ3** to **පැ12**) which by itself, simply, shows nothing but his *mala-fides* by reason of the fact that the Respondent in the proceedings before the Magistrate's Court of Hatton who being the Appellant in the instant appeal, had notwithstanding the receipt of those letters (**පැ3** to **පැ12**) informing him of his unauthorized construction in total contravention of the building plan approved by the Hatton-Dickoya Urban Council as evident from **පැ1** and **පැ2**, proceeded to construct 4th and 5th floors at his own free will thereby, taking the law onto his hands in the absence of any lawful authorization granted to him for that purpose by the relevant authority, namely; the Hatton-Dickoya Urban Council.

Hence, I would hold that the position so adverted to by the Respondent in the proceedings before the Magistrate's Court of Hatton who being the Appellant in the instant appeal, ought to have been rejected *in-limine* on this ground too, as rightly, done by the learned Magistrate of Hatton.

There is another point which would I think, militate against the position so adverted to by the Respondent in the proceedings before the Magistrate Court of Hatton who being the Appellant to the instant appeal and it may now, be examined.

The Respondent not only in his statement of showing cause filed in the Magistrate Court of Hatton but also in the petition filed along with the application in revision in the High Court of the Central Province holden at Nuwaraeliya and also in the written submissions filed thereat, and also, in the questions of law

formulated in the petition of appeal filed in this Court, had attempted to show that there were such other unauthorized constructions in the Hatton-Dickoya Urban Council area in respect of which no action whatsoever, had been taken by the Petitioner in the proceedings before the Magistrate Court of Hatton.

This is in my opinion, very much suggestive of the fact that the 4th and 5th floors of the building in question too, were unauthorized constructions among those such other unauthorized constructions situated in the Hatton-Dickoya Urban Council area.

Hence, the position so adverted to by the Petitioner in the proceedings before the Magistrate's Court of Hatton that the building plan approved by the Hatton-Dickoya Urban Council was the one shown and referred to in the **පැ1** and **පැ2** and therefore, 4th and 5th floors of the building are unauthorized constructions, can in my opinion, sustain both in fact and law. On the other hand, the position so adverted to by the Respondent in the proceedings before the Magistrate's Court of Hatton that the building plan approved by the Hatton-Dickoya Urban Council was the one shown and referred to in the **වි1** and not one shown and referred to in **පැ1** and **පැ2** is untrue and therefore, cannot sustain both in fact and law.

Hence, I would see no error in the findings of the learned Magistrate of Hatton arrived at by him on the point discussed above, and as such the contention so advanced by the learned Counsel for the Appellant at the hearing of this appeal by way of submissions oral and written particularly, in paragraphs 22 to 27 of the written submissions of the Appellant furnished to this Court, is not entitled to succeed both in fact and law and as such it should be rejected in-limine.

In view of my findings with regard to the contention raised by the learned Counsel for the Appellant in the submissions oral and written particularly, in paragraphs 22 to 27 of the written submissions of the Appellant furnished to this Court, the further contentions raised by the learned Counsel for the Appellant in paragraphs 11 to 17 of the written submissions thereof at the

hearing of this appeal, which are in my opinion, interwoven and interlinked with the contention so raised, in paragraphs 22 to 27 of the written submissions of the Appellant, too, are not entitled to succeed both in fact and law and as such they too, should be rejected *in-limine*.

With regard to the contention advanced by the learned Counsel for the Appellant at the hearing of this Appeal on the violation of the legitimate expectation of the Appellant, however, upon a careful, consideration of the submissions oral and written made by the learned Counsel in support thereof, particularly, in paragraphs 28 to 32 of the written submissions, it clearly, appears that no argument had been advanced by the learned Counsel for the Appellant in support of the contention so raised by him and as such it too, is not entitled to succeed both in fact and law and as such it too, should be rejected *in-limine*.

Besides, the pertinent question that would arise before us for our consideration is; **How can the Appellant who had constructed the 4th and 5th floors of the building in total contravention of the building plan approved by the Hatton-Dickoya Urban Council (පැ1 and පැ2) and despite the repeated requests made to him by the Hatton-Dickoya Urban Council by the letters marked පැ3 to පැ12, the receipt of which were clearly, admitted in paragraph 21 of the written submissions of the Appellant filed before this Court, to remove and demolish the 4th and 5th floors so constructed by him in total contravention of the building plan approved by the Hatton-Dickoya Urban Council (පැ1 and පැ2) thereby, taking the law onto his hand, entertain the legitimate expectation?** I think this question should be answered in the negative and against the Appellant for the reasons stated hereinbefore and as such the next, contention advanced by the learned Counsel for the Appellant based on the alleged violation of legitimate expectation of the Appellant too, is not entitled to succeed both in fact and law and as such it too, should be rejected.

Let me now, examine the burden of proof in an application made to a Magistrate Court under and in terms of the provisions of section 28A(3) of the Act seeking

an order for demolition of an unauthorized construction allegedly, erected by a party noticed under the Act.

In an application made to a Magistrate Court under and in terms of the provisions of section 28A(3) of the Act seeking an order for demolition of an unauthorized construction allegedly, erected by a party noticed under the Act, the only defence available to him is that the construction in question had been done on a valid permit granted to him by the relevant authority and the burden of proof thereof, will solely, rest on the party noticed.

However, it is significant to observe that the Appellant had not established before the Magistrate's Court of Hatton that the 4th and 5th floors in question had been constructed by him upon a valid permit issued to him by the Respondent under and in terms of the provisions of the Act.

Hence, the Appellant had not in any manner, discharged the burden of proof so rested in him by producing a valid permit in respect of the construction in question as rightly, held both by the learned Magistrate of Hatton as well as the learned High Court Judge of the Province.

In view of all the above facts and circumstances, I see no error in the order of the learned Magistrate of Hatton as rightly, held by the learned High Court Judge of the Province and therefore, the learned High Court Judge of the Province was entirely, right in rejecting the application in revision preferred to it by the Appellant from the order of the learned Magistrate of Hatton on the premise that there was no illegality, impropriety or procedural irregularity in it.

In the circumstances, I would see no legal basis whatsoever, to interfere with any of the orders pronounced either by the learned Magistrate or the learned High Court Judge of the Province.

Hence, I would hold that appeal is not entitled to succeed both in fact and law.

In the result, I would dismiss the appeal with costs, fixed at Rs. 75,000/-

I would thus, affirm both of the orders of the learned Magistrate and the learned High Court Judge of the Province.

JUDGE OF THE COURT OF APPEAL

D. THOTAWATTA, J.

I agree.

JUDGE OF THE COURT OF APPEAL